(1) Nadil (2) Noshaba v (1) Nameer (2) Naseema

APRIL 26, 2025 COURT OF APPEAL - ORDERS

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS

In the name of His Highness Sheikh Mohammad Bin Rashid Al Maktoum, Ruler of Dubai

IN THE COURT OF APPEAL

BEFORE H.E. CHIEF JUSTICE WAYNE MARTIN, H.E. JUSTICE ROBERT FRENCH AND H.E.JUSTICE SIR PETER GROSS

BETWEEN

(1) NADIL

(2) NOSHABA

Claimants/Appellants

and

(1) NAMEER

(2) NASEEMA

Defendants/Respondents

Hearing :	25 April 2025
Counsel :	Tom Montagu-Smith KC instructed by Stephenson Harwood Middle East LLP for the Claimants/Appellants
Order :	26 April 2025
Judgment :	13 June 2025

ORDER OF THE COURT OF APPEAL

UPON the Appellants' application dated 11 April 2025 for a freezing injunction and related disclosure orders against the Respondents (the "Application")

AND UPON the Judgment and Order of H.E. Deputy Chief Justice Ali Al Madhani dated 17 April 2025 dismissing the Application (the "CFI Judgment" and "CFI Order" respectively)

AND UPON the Appellants application dated 18 April 2025 to appeal against the CFI Order

AND UPON the order of H.E Deputy Chief Justice Ali Al Madhani dated 21 April 2025 granting permission to appeal against the CFI Order pursuant to ROC 44 19(2)

AND UPON the Appellants two Grounds of Appeal dated 10 April 2025 (respectively, the "First Ground of Appeal" and the "second Ground of Appeal")

AND UPON hearing from counsel for the Appellants in private at the hearing held before H.E. Chief Justice Wayne Martin. H E Justice Robert French and H.E Justice Sir Peter Gross on 25 April 2025.

IT IS HEREBY ORDERED THAT

1. For reasons given ex tempore the Appeal is granted on the Second Ground of Appeal

2. The CFI Order is set aside.

3. The Court of Appeal of the DIFC shall issue on order in the terms of the order appended herewith.

4. The First Ground of Appeal is adjourned on the following terms:

(1) Within 28 days of the date of service of this Order, the Respondents shall indicate whether they intend to dispute the jurisdiction of the DIFC Court;

(2) If the Respondents (or either of them) indicate an intention to dispute jurisdiction they shall, at the same time:

(a) file and serve submissions in response to the First Ground of Appeal (the "Respondents" First Ground Submissions");

(b) inform the Court of whether they request on oral hearing before the DIFC Court of Appeal to determine the First Ground of Appeal.

(3) If the Respondents (or either of them) indicate an intention to dispute jurisdiction and request an oral hearing, the Court of Appeal shall list a hearing to determine the First Ground of Appeal.

(4) If the Respondents (or either of them) indicate an intention to dispute jurisdiction and do not request an oral hearing

(a) the Appellants shall file and serve submissions in response to the Respondents' submissions filed pursuant to paragraph 4(2)(a) of this Order within 14 days after service of such submissions; and

(b) the Court of Appeal shall then proceed to determine the First Ground of Appeal on the papers

(5) If neither of the Respondents indicates an intention to dispute Jurisdiction the DIFC Court of Appeal will proceed to determine the First Ground of Appeal on the papers.

5. The Return Date Hearing before the DIFC Court of First Instance is reserved to H. E. Chief Justice Wayne Martin.

6. Subject to further order of the DIFC Court of First Instance or the DIFC Court of Appeal, these proceeding shall remain private

7. Notwithstanding paragraph 6 of this Order, the Court has decided to publish through the DIFC Registry:

(1) An anonymised version of those parts of the CFI Judgment and CFI Order which address the issue of jurisdiction; and

(2) An anonymised version of those parts of the Judgment and order of the DIFC Court of Appeal, which address the issue of Jurisdiction

8. The Registry will provide the Appellants with drafts of the anonymised Judgments and orders referred to in paragraphs 7(1) and 7(2) of this Order and the Appellants shall have 3 working days from receipt of the anonymised Judgments and orders to provide the DIFC Registry with any comments before they are published Fuller versions of the decisions may be published in due course, following further consultation with the parties

9. Costs to be reserved until the Return Date Hearing.

Issued by:

Hayley Norton

Assistant Registrar

Date of Issue: 26 April 2025

At: 10pm